

**SAN ANDREAS SANITARY DISTRICT, et al v  
LOCKWOOD, et al**

**25CV48360**

**PLAINTIFF'S REQUEST FOR PRELIMINARY INJUNCTION**

This is an action for breach of contract, nuisance, and declaratory judgment related to two permanent public utility easements and one access easement over three separate parcels of real property for the benefit of the San Andreas Sanitary District ("District.") Defendants are Lisa Lockwood ("Lockwood"), Donald Neu ("Neu"), and Neuwood Ranch Goats, LLC. ("LLC") (collectively "Defendants.") Lockwood and Neu are the record owners of the Properties; Lockwood and Neu as members of the LLC which operates a goat grazing business.

Now before the Court is an order to show cause why a preliminary injunction should not issue against Defendants.

**I. Background Facts**

Lockwood and Neu own the real property commonly known as 1516 Highway 12, San Andreas, California 95249, identified by Assessor's Parcel Numbers: 040-008-060-000 ("Property 1"); 040-013-009-000 ("Property 2" ; and 040-012-026- 000 ("Property 3" (collectively, the "Properties.") (Complaint ¶ 6.) The District holds three recorded easements (two permanent public utility easements and one access easement) granting it access to operate, maintain, inspect, and repair its wastewater treatment monitoring system over three separate and commonly owned parcels. (*Id.* ¶ 1.) The LLC operates a goat grazing business on the Properties. (*Id.* ¶ 7.)

In February of 2004, Isabel M. Nielsen, individually and as Trustee of the Isabel M. Nielsen Revocable Trust ("Nielsen"), conveyed to District a permanent easement for the purposes of placing, maintaining, and operating a flow meter on the Calaveras River, together with a monitoring station and an access easement for ingress and egress. (Complaint ¶ 11.) Subsequently, Nielsen accepted District's offer to purchase a temporary construction easement and an additional permanent utility easement for the installation and maintenance of an underground sewer main with surface manholes. (*Id.* ¶ 12.) In November of 2017, Nielsen conveyed the Properties by grant deed to Lockwood and Neu. (*Id.* ¶ 13.)

District holds a 15-foot-wide permanent public utility easement and 15-foot-wide access easement over approximately 0.50 acres of Property 2 benefiting District (“Check Dam Easements.”) (Complaint ¶14, Ex. 3.) The Check Dam Easements allow District access to Property 2 for the purposes “placing, maintaining and operating a flow meter on the Calaveras River together with a monitoring station...”; and (b) a non-exclusive access easement for ingress and egress. (Complaint ¶ 15.) The Check Dam Easements are essential to District’s ability to record the Calaveras River’s flow discharge (as required by the District’s NPDES permit) and the District’s ability to operate its monitoring station. (*Ibid.*)

District holds a 20-foot-wide permanent public utility easement over approximately 1.02 acres of the Properties (“Outfall Easement.”) (Complaint ¶ 20, Ex. 4.) Nielsen conveyed the Outfall Easement to District in April of 2024. (*Ibid.*) The Outfall Easement is a non-exclusive permanent public utility easement for the purposes of “placing, maintaining and operating an underground sewer main with surface manholes[]...” (*Id.* ¶ 21.)

District alleges that for approximately two years, on and off Lockwood and Neu (and Does 1-10) have breached the Deed of Easement conveying the Check Dam Easements by allowing obstructions that prevent entry to the Check Dam Easement’s roadway. Specifically, these defendants allow livestock to roam their property which prevents District’s access to enter the roadway to access its easements. (Complaint ¶ 26.) Lockwood and Neu have also allegedly placed either a barbed wire or an electric fence on the Properties which prevents District from utilizing the Outfall Easement. (*Id.* ¶ 30.)

On October 17, 2025, this Court issued a Temporary Restraining Order and Order to Show Cause Why a Preliminary Injunction Should not Issue Enjoining Defendants from obstructing the San Andreas Sanitary District’s public utility easement (“Outfall Easement”). The TRO enjoined Defendants from obstructing the Outfall Easement by the electric fence, from interfering with the District’s operation and maintenance of its underground sewer pipeline located at the North Fork Calaveras River.

District filed a supplemental brief in support of the OSC. Defendants have not filed any opposition.

## **II. Legal Standard and Discussion**

When determining whether to issue a preliminary injunction, the court considers two interrelated questions: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of

interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554; *see also Robbins v. Sup. Ct.* (1985) 38 Cal.3d 199, 206; Code Civ. Proc., § 526.)

### **A. Likelihood of Prevailing on the Merits**

District's complaint brings causes of action for breach of contract, private nuisance, and declaratory relief.

In order to prevail on a cause of action for breach of contract, District must demonstrate: 1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

Here, District has alleged and produced evidence of valid easements, giving District the right to access and maintain the sewer lines and flow meters. Defendants have not filed any opposition and there is no evidence or argument made that the easements are invalid. District has also alleged and produced evidence that it has complied with the various easements but that Defendants have breached the easements by blocking access to the Properties. Finally, District has alleged (without opposition) that they have been damaged because they cannot access their equipment to perform maintenance or other operations. Accordingly, District is likely to prevail on its cause of action for breach of contract.

Likewise, the District is likely to prevail on its cause of action for private nuisance. "When a person interferes with the use of an easement he deprives the easement's owner of a valuable property right and the owner is entitled to compensatory damages. The interference is a private nuisance and the party whose rights have been impeded can recover damages as measured in the case of a private nuisance." (*Moylan v. Dykes* (1986) 181 Cal.App.3d 561, 574.)

Finally, Plaintiff is likely to prevail on its request for declaratory relief because there is an actual controversy over the rights conveyed to District through the easements.

### **B. Balance of Harm to the Parties**

The Court must next look at the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief. (*White v. Davis* (2003) 30 Cal.4th 528, 554.) "[T]he more likely it is that [applicant] will ultimately prevail, the less severe must

be the harm that they allege will occur if the injunction does not issue.” (*King v. Meese* (1987) 43 Cal. 3rd 1217, 1227.) The general purpose of a preliminary injunction is often to preserve the status quo. (*Harbor Chevrolet Corp. v. Machinists Local Union 1484* (1959) 173 Cal.App.2d 380, 384.)

District’s motion states that it is being harmed through Defendants’ conduct because, while the electric fence was removed, there remains a barbed wire fence which poses a safety threat to its workers and impedes access to the Outfall Easement. (Declaration of Hugh Logan (“Logan Decl.”) ¶ 4.) Furthermore, to reach the easement area located beyond the barbed wire fence (that is still across the Outfall Easement), District employees must place an industrial ladder over the barbed wire fence to climb over. (*Id.* at ¶¶ 7, 8; Ex A to Declaration of Shane Tate in Support of OSC (“Tate Decl.”).) District’s representative avers that the use of a ladder to access the Outfall Easement is “unsafe and in violation of the District’s Injury & Illness Prevention Program (“IIPP”) and the District’s Code of Safe Practices. (Logan Decl. at ¶¶ 9-11.) District states that it is now forced to either subject its employees to unsafe working conditions (and potentially opening themselves up to liability) or risk noncompliance with requirements of the Regional Water Quality Control Board. (*Id.* ¶ 15.)

Defendants have not brought an opposition nor provided any evidence that it will be harmed by being enjoined from interfering with the District’s Outfall Easement.

### **III. Conclusion**

The preliminary injunction is **GRANTED**.

Defendants are ordered to remove the barbed wire fence or, alternatively, are required to provide a safe means of access through the fence that does not require the use of a ladder. Defendants are further enjoined from taking any steps that would unreasonably interfere with District’s ability to perform all operations and maintenance as allowed and anticipated via the easements currently in place.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted proposed Order.